APPELLATE COURT
OF THE
STATE OF CONNECTICUT

AC 46854

NORTH BRANFORD CITIZENS AGAINST BULK PROPANE STORAGE,
PLAINTIFF-APPELLANT,
v.
TOWN OF NORTH BRANFORD, TOWN OF NORTH BRANFORD PLANNING & ZONING COMMISSION, 2772 BPR, LLC, and DONALD FUCCI
DEFENDANTS-APPELLEES

BRIEF OF THE PLAINTIFF-APPELLANT

For the Plaintiff-Appellant:
Peter C. White
21 Evergreen Drive
North Branford, CT 06471
Tel: (203) 747-5532
E-mail: attorneypeterwhite@icloud.com
Juris No. 425295

To Be Argued By:
Peter C. White

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STATEMENT OF THE ISSUES ON APPEAL

1. Whether the Court has subject matter jurisdiction pursuant to the "strong public policy" exception to the exhaustion of administrative remedies requirement recognized in Upjohn Co v. Zoning Board of Appeals, 224 Conn. 96, 616 A.2d 793 (1992).
2. Whether the Court has subject matter jurisdiction over this action for declaratory judgment and injunctive relief.

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NATURE OF THE PROCEEDINGS

1. Statement of Facts

The Plaintiff, North Branford Citizens Against Bulk Propane Storage (NB Citizens) is an association of Town citizens that formed to oppose 2772 BPR, LLC's installation of a bulk propane storage facility at 40 Ciro Road. The association formed as a result of the following events alleged in the Complaint:

> On May 14, 2014, while a member of the Town Council, Defendant Donald Fucci appeared before the Planning & Zoning Commission to propose amending the zoning regulations that affected 40 Ciro Road. The amendments would allow for bulk propane storage, which was otherwise prohibited throughout the Town. A8-A9. Fucci had a personal and pecuniary interest in amending the regulations: he owned the property and wanted to facilitate the sale to Defendant 2772 BPR, LLC. A8-A9. Fucci and the other Defendants were aware that bulk propane storage was a "hot button" issue likely to arouse signification opposition by Town residents. Guilford Residents had rejected 2772 BPR, LLC's similar proposed installation of a bulk propane storage facility on River Street due to safety, traffic, and concerns about industrial accidents from a "BLEVE," a "boiling liquid expanding vapor explosion." Residents in the Town of Clinton had rejected a similar proposal. A9. At the May 14, 2014 meeting, two members of the P&Z Commission voiced their concerns about the amendments. A10.

Immediately following the May 2014 P&Z Commission meeting, Fucci, with the complicity of the Town Council, arranged to remove and replace the two commission members who might oppose the amendments. He did so despite having substantial personal and pecuniary interests that conflicted with the proper discharge of his duties as a Town Council Member and the Town Code of Ethics. A910. Regardless, Fucci voted to nominate the two replacements of the commission. Then, as a member of the Town Council, he voted to approve the nominees. At the August 7, 2014 P&Z Commission meeting, with the two

replacement members sitting on the commission, each replacement voted in favor of the amendment to allow bulk propane storage at 40 Ciro Road. A10.

On August 14, 2014, Fucci, with Mayor Candelora attended a meeting of the Inland Wetlands and Watercourses Agency (IWWA). The meeting was closed to the public. Regardless, Fucci and Candelora attended to ensure that the IWWA would approve the wetlands permit needed to install the bulk propane facility at 40 Ciro Road, which is adjacent to an inland wetlands area. Fucci, with Candelora's assistance, were successful in replacing an agency member who had opposed the amendments. A11.

2. Procedure

NB Citizens organized shortly after public outrage to the amendments due to the size of the bulk propane storage facility, and after becoming aware of Fucci's ownership in 40 Ciro Road. Plaintiff filed the instant action on February 27, 2017, seeking declaratory judgment and injunctive relief against the Town, the Planning & Zoning Commission, Donald Fucci individually, and 2772 BPR, LLC to invalidate the zoning amendments and to enjoin the installation of the facility. A4.

On April 5, 2017, Fucci moved to dismiss the action for lack of subject matter jurisdiction. A17. Following a lengthy administrative appeal in a related matter[1] the P&Z Commission, the Town, and 2772 BPR, LLC also moved to dismiss. A18, A26. The trial court granted the motions on August 8, 2023, concluding that it lacked subject matter jurisdiction over a late administrative appeal pursuant to Conn. Gen. Stat. § 8-8(b), and that the strong public policy exception to the exhaustion of administrative remedies requirement did not apply. A28. Plaintiffs timely appealed the decision on August 25, 2023. A38.

[1] In 2017, after Plaintiff had filed the Complaint, the P&Z Commission denied the site plan application for 40 Ciro Road. The denial would have rendered Plaintiff's claim in this action moot; however 2772 BPR, LLC prevailed on the appeal and the site plan was ultimately approved. 2772 BPR, LLC v. Planning & Zoning Comm'n of the Town of N. Branford, 207 Conn.App. 377, 262 A.3d 906 (2021), petition for certification denied 340 Conn. 908, 264 A.3d 1001 (December 21, 2021).

ARGUMENT

1. Whether the trial court has subject matter jurisdiction pursuant to the "strong public policy" exception to the exhaustion of administrative remedies requirement as recognized in Upjohn Co v. Zoning Board of Appeals, 224 Conn. 96, 616 A.2d 793 (1992).

A. Standard of Review

The Court exercises plenary review over a Practice Book § 10-31(a) pre-trial motion to dismiss for lack of standing. Gold v. Rowland, 296 Conn. 186, 200–01, 994 A.2d 106 (2010). The Court takes the facts alleged in the complaint including those facts necessarily implied from the allegations, and construes them in a manner most favorable to the pleader. Cogswell v. American Transit Ins. Co., 282 Conn. 505, 516 (2007).

B. The trial court has subject matter jurisdiction over this appeal pursuant to the "strong public policy exception" to the exhaustion requirement as recognized in Upjohn Co v. Zoning Board of Appeals, 224 Conn. 96, 616 A.2d 793 (1992).

The "strong public policy exception" to the exhaustion of administrative remedies requirement permits a collateral attack on a zoning decision even after the appeal period has passed. Upjohn Co v. Zoning Board of Appeals, 224 Conn. 96, 102, 616 A.2d 793 (1992). It is an exception to the general rule that a party generally may not institute an action challenging the decisions of a zoning authority until all administrative remedies have been exhausted. Thus, "[a] collateral attack [of a zoning decision] may be maintained … where the continued maintenance of a previously unchallenged condition would violate some strong public policy." Id. at 104-05; see also Gangemi v. Zoning Bd. of Appeals of Town of Fairfield, 255 Conn. 143, 144-45, 763 A.2d 1011 (2001) (holding no rental condition on property "violat[ed] the strong and deeply rooted public policy in favor of the free and unrestricted alienability of property…"); Nonkin v. Dean Haubrich, Superior Court, judicial district of Litchfield, Docket No. LLI-cv-07-4006012 S (August

29, 2007, Brunetti, J.) (holding strong public policy exception to exhaustion of administrative remedies doctrine permitted town resident to seek equitable relief to enforce zoning regulation).

C. Upholding the public trust is a strong public policy and a violation of that trust has been grounds to invalidate zoning amendments since Low v. Madison, 135 Conn. 1, 60 A.2d 774 (1948).

Upjohn allows the Plaintiff to file a collateral attack of a zoning decision with a showing of a violation of a "strong public policy." Upjohn Co. at 104-05. Vindication of a violation of the public trust is such a strong public policy. Indeed, well before Upjohn was decided the Connecticut courts had frequent occasion to invalidate zoning amendments that were enacted in violation of the public trust. Closely analogous to the facts alleged in the Complaint, these violations involved zoning amendments enacted when a governmental official participated in zoning decisions in which they had a personal or pecuniary interest. See e.g., Low v. Madison, 135 Conn. 1, 60 A.2d 774 (1948) (invalidating amendments based on P&Z member's personal interest); Mills v. Town Plan and Zoning Commission of Town of Windsor, 144 Conn. 493, 499, 134 A.2d 250 (1957) (invalidating zoning amendments based on violation of public trust); Daly v. Town Plan and Zoning Commission of Town of Fairfield, 150 Conn. 495, 500, 191 A.2d 250 (1963) ("[planning and zoning member's] participation in [amending zoning regulation] renders the attempted amendment invalid."); Lake Garda Imp. Ass'n v. Town Plan and Zoning Commission of Town of Farmington, 151 Conn. 476, 199 A.2d 162 (1964) (holding commissioner disqualified from voting on amendments affecting his property); Josephson v. Planning Bd. of City of Stamford, 151 Conn. 489, 199 A.2d 690 (1964); Kovalik v. Planning and Zoning Commission of Town of New Fairfield, 155 Conn. 497, 498-99, 234 A.2d 838 (1967) (holding zoning revision invalid when chairman refused to disqualify himself despite ownership of substantial land affected by the proposed zoning change); Murach v. Planning and Zoning Com'n of City of New London, 196 Conn. 192, 202, 491 A.2d 1058 (1985) ("our statutes expressly preclude the participation of any member of a municipal planning and zoning commission in 'any matter in which he is directly or indirectly interested in a personal or financial sense.'"); Nonkin v. Dean Haubrich, Superior Court, judicial district of Litchfield, Docket No. LLI-cv-07-4006012 S (August 29, 2007, Brunetti, J.) (holding strong public policy

exception permitted resident to obtain equitable relief to enforce zoning regulations).

Low v. Madison, 135 Conn. 1, 60 A.2d 774 (1948) is a seminal case and its holding is relevant today, and the facts are similar to this action. Low concerned a Madison resident who had applied to re-zone property she owned, amending the zoning from residential to allow for commercial activities. The applicant's husband, George Fischer, was a member of the planning and zoning commission. Despite the conflict of interest, Fischer voted to approve the amendments. His vote made the P&Z's decision unanimous, thus overruling a protest filed by abutting property owners. Id. at 2-3.

The property owners appealed. The Court decided whether to invalidate the amendments: "[W]hether … Mr. Fisher's public duty as a member of the zoning commission so conflicted with his private interest in his wife's application that the fairness and impartiality of the proceedings are called in question." Id. The Court held the amendments to the zoning regulations were invalid because they were enacted in violation of the public trust. Fischer's personal interest conflicted with his public duty. He was therefore disqualified from voting on the amendments based on his pecuniary interest in the outcome that affected his wife's property.

> Public office is a trust conferred by public authority for a public purpose. … [Fischer's] status forbids the public officer from placing himself in a position where his private interest conflicts with his public duty. The good faith of the official is of no moment because it is the policy of the law to keep him so far from temptation as to insure the exercise of unselfish public interest. He must not be permitted to place himself in a position in which personal interest may conflict with his public duty.
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> The action of the zoning commission taken under the circumstances disclosed was laid open to misinterpretation and suspicion by the action of Mr. Fisher. He could not, with propriety, vote upon his wife's application, and, since the change of zone purportedly made depended upon his participation, the action of the zoning commission was invalid.

Id. at 8 (emphasis added).[2]

Low's holding is relevant today. "We have recently reaffirmed the vitality of the principle declared in Low v. Madison … 'that the appearance of impropriety created by a public official's participation in a matter in which he has a pecuniary or personal interest is alone sufficient to require disqualification.' … And, of course, our statutes expressly preclude the participation of any member of a municipal planning and zoning commission in 'any matter in which he is directly or indirectly interested in a personal or financial sense…. We have often stated that the test for disqualification 'is not whether personal interest does, in fact, conflict, but whether it reasonably might conflict.' Murach v. Planning and Zoning Com'n of City of New London, 196 Conn. 192, 202-03, 491 A.2d 1058, (1985) (quoting Low)."

As demonstrated by the above-cited cases, courts have applied Low to invalidated zoning amendments under the public trust doctrine. For example, in Kovalik v. Planning and Zoning Commission of Town of New Fairfield, 155 Conn. 497, 498, 234 A.2d 838, (1967) the invalidated zoning amendments after the Commissioner had voted, based on a violation of the public trust: the commission owned 8% of the land that was subject to the amendments. Id. "This court has had repeated occasion to reaffirm the principle that public policy requires that members of zoning boards and commissions cannot be permitted to place themselves in a position in which personal interest may conflict with public duty." Id. at 498-99 (emphasis added).

D. The Complaint alleges that Fucci, the Town of North Branford, and the Planning & Zoning Commission violated the Public Trust.

Exactly as in Low, Kovalik, and the above-cited cases, Plaintiff's Complaint alleges a violation of the public trust by Fucci and the Town Council. When it became apparent that there might be opposition to zoning amendments, Fucci immediately undertook to nominate replacements to the P&Z Commission who would vote in his favor and eventually did. He also used his influence to

[2]Following Low the General Assembly enacted what is now § 8-11 of the General Statutes which expressly provides: "No member of any zoning commission or board and no member of any zoning board of appeals shall participate in the hearing or decision of the board or commission of which he is a member upon any matter in which he is directly or indirectly interested in a personal or financial sense."

manipulate the membership the IWWA to shortcut any opposition to the required wetlands permit. The Planning & Zoning Commission and the Town Council were thus complicit in the violation of the public trust. It was beyond the "appearance of impropriety" recognized by Low. It was the actual fact. As the Court stated in Mills, "Public policy cannot tolerate these proceedings. The record before us presents, not a possibility of disqualification, but its actuality. The action of the defendant commission was invalid." Mills v. Town Plan and Zoning Commission of Town of Windsor, 144 Conn. 493, 499, 134 A.2d 250 (1957) (emphasis added).

Viewed in the light most favorable to the Plaintiff, and most favorable to upholding the Court's jurisdiction, the facts establish that Fucci, with the complicity of the Town Council, manipulated the membership of the Planning & Zoning Commission as well as the IWWA to suppress any possible opposition to the zoning amendments. He did so to advance his personal and pecuniary interests, the sale of his property at 40 Ciro Road. The Complaint alleges a violation of the public trust as a strong public policy. Upjohn, Low and its progeny allows the Plaintiff to mount a collateral attack when the public trust has been betrayed. Accordingly, the court has subject matter jurisdiction over this action.

E. The trial court failed to acknowledge Fucci's role in manipulating the composition of the Planning & Zoning Commission and the IWWA.

The trial court concluded that it lacked subject matter jurisdiction because NB Citizens failed to exhaust its administrative remedies by failing to timely appeal the decision by the P&Z Commission within the fifteen day appeal period required by Conn. Gen. Stat. § 8-8(b) (A33) and that the strong public policy exception to the exhaustion requirement did not apply- the trial court simply concluded that Fucci did not violate the public trust:

> The plaintiff argues that Fucci's open advocacy for the proposed amendment was a violation of strong public policy, citing Murach v. Planning and Zoning Commission, 196 Conn. 192, 202, 491 A.2d 1058 (1985), for the contention "that the appearance of impropriety created by a public official's participation in a matter

> in which he has a pecuniary or personal interest is alone sufficient to require disqualification." (Emphasis in original.) However, Fucci was not a member of the commission, nor did he participate in the vote to approve the zoning amendment. The plaintiff has not alleged any conflict of interest on the part of the commission or any of its voting members in regard to the August 7, 2014 decision to amend the town's zoning regulations.
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> A36-37.

The trial court's failure to recognize the strong public policy exception to the exhaustion requirement under the instant facts was clear error. Most importantly, the trial court failed to acknowledge the gravamen of the Complaint: Fucci did not simply "advocate" before the commission. Fucci used his position as town councilman to achieve the result he wanted by manipulating the membership of two Town agencies, the P&Z Commission and the IWWA. The fact that Fucci was not a member of the Planning & Zoning Commission is not determinative. With his influence he advanced his pecuniary interest: amending the zoning to affect his property to allow bulk propane storage on 40 Ciro Road, despite the longstanding zoning regulations prohibiting bulk propane storage throughout the Town. He increased the property value and facilitated the sale to 2772 BPR, LLC. "Public policy cannot tolerate these proceedings." Mills supra, at 499.

2. Whether the Court has subject matter jurisdiction over this action for declaratory judgment and injunctive relief.

A. Standard of Review.

The standard of review for dismissal for lack of standing is set forth in section 1-A, supra.

B. This is not an administrative appeal, but an action for declaratory judgment and injunctive relief; the relief includes the Town, the Planning & Zoning Commission, 2772 BPR, LLC, and Fucci individually.

The trial court held it lacked subject matter jurisdiction because the plaintiff failed to timely appeal the P&Z Commission decision within the time period prescribed by CONN. GEN. STAT. § 8-8. However, this is an action for declaratory and injunctive relief.[3] Although the relief Plaintiff seeks includes invalidating the zoning amendments, Plaintiff seeks declaratory judgment and injunctive relief against the Town, 2272 BPR, LLC and Donald Fucci in his individual capacity for the collective violations of the public trust.

The inclusion of the allegations of malfeasance on the party of the Town Council and Fucci individually, not just the Planning & Zoning Commission, shows that this is not simply an administrative appeal. The allegations include complicity by the Town Council in allowing the Fucci, with the assistance of the Mayor, to manipulate the membership of the Planning & Zoning Commission and the IWWA. Such an action would not be allowed in an administrative appeal. See generally England v. Town of Coventry, 183 Conn. 362, 439 A.2d 372 (1981).

England v. Town of Coventry is instructive why the Court has subject matter jurisdiction over this action. In that case, plaintiffs applied to the town P&Z for a subdivision of their property. The P&Z Commission required that plan to show certain improvements to the facilities of the town, which included construction of a storm water drainage system (2) reconstruction of a road, and (3) installation of berms on the side facing the land of the plaintiffs. By way of relief, the plaintiffs sought a declaratory judgment which would hold the defendant town or alternatively the plaintiffs responsible for the cost of installing the improvements to the town's facilities which the commission required. Id. at 363.

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[3]Conn. Gen. Stat. § 52-29 provides, "any action or proceeding to declare rights and other legal relations on request for such a declaration whether or not further relief is or could be claimed." Practice Book § 17-54 provides, "Declaratory Judgment; Scope. The judicial authority will, in cases not herein excepted, render declaratory judgments as to the existence or nonexistence (1) of any right, power, privilege or immunity; or (2) of any fact upon which the existence or nonexistence of such right, power, privilege or immunity does or may depend, whether such right, power, privilege or immunity now exists or will arise in the future."

The issue was whether the trial court erred in ordering the dismissal of the plaintiffs' complaint seeking a declaratory judgment. The defendants had alleged that the trial court lacked subject matter jurisdiction because the plaintiffs failed to appeal, and the trial court granted the motion to dismiss for lack of subject matter jurisdiction. However, the Supreme Court reversed. "….[the Practice Book] allows the trial court wide discretion to render a declaratory judgment unless another form of action clearly affords a speedy remedy as effective, convenient, appropriate and complete." Id. at 365. "The present action for a declaratory judgment is more effective, convenient, and complete than an appeal under General Statutes § 8-28 because the town of Coventry is a defendant in this action whereas such an appeal would not have included the town. Therefore an appeal would not have bound the town, had the commission decided that the town, not the plaintiffs, must pay for the disputed improvements." Id. at 365-66. (emphasis added). The Court continued:

> The Superior Court has subject matter jurisdiction in any action or proceeding to declare rights and other legal relations on request for such a declaration whether or not further relief is or could be claimed. We have consistently construed this broad statutory grant of jurisdiction and the related Practice Book provisions liberally to serve their sound social purpose. Thus, the Superior Court has subject matter jurisdiction over suits for declaratory relief despite the adequacy of other legal remedies. We therefore conclude that the trial court erred in dismissing the action.

Id. at 364 (internal citations omitted).

The Court should reject the argument that the action is limited by CONN. GEN. STAT. § 8-8(b)'s fifteen-day period appeal period. The nature of this action is one for declaratory judgment. The Complaint alleges that Donald Fucci improperly used his influence as a Town Council member to effect the sale/ lease of his property at 40 Ciro Road to 2772 BPR, LLC by manipulating the membership of the town Planning & Zoning Commission and by manipulating the membership of the IWWA to obtain a permit to conduct a regulated activity in an inland wetlands area. He did so with the knowledge of Town officials, including the Mayor. Similar to England v. Town of Coventry, Plaintiff seeks equitable remedies not only against Fucci but also against the Town for its complicity in permitting Fucci to profit from his selfdealing. Declaratory judgment must be

liberally construed to serve their sound social purpose…. despite the adequacy of other legal remedies.“ Id. at 364. The Plaintiff, citizens of the Town, were rightly outraged by the conduct of the Planning & Zoning Commission, the mayor, Fucci, and the Town Council. The trial court has wide discretion to render a declaratory judgment unless another form of action clearly affords a speedy remedy as effective, convenient, appropriate and complete.“ Id. at 365. Accordingly, the Court has subject matter jurisdiction over this action.

CONCLUSION

For the aforementioned reasons, Plaintiff-Appellant prays that the Court reverse the trial court's dismissal of the Complaint for lack of subject matter jurisdiction.

Respectfully submitted,

THE PLAINTIFF,

By: _____

Peter C. White (425295)
21 Evergreen Drive
North Branford, CT 06471
attorneypeterwhite@icloud.com
Tel. (203) 747-5532

CERTIFICATION

The undersigned attorney hereby certifies, pursuant to Connecticut Rule of Appellate Procedure § 67-2A, that on March 22, 2023:

1. a copy of the brief and party appendix has been sent electronically to each counsel of record listed below in compliance with § 62-7, except for counsel of record exempt from electronic filing pursuant to § 60-8, to whom a paper copy was sent;
2. the brief and party appendix being filed with the appellate clerk is a true copy of the brief and party appendix that was submitted electronically pursuant to subsection (f) of this section;
3. the brief and party appendix has been redacted or does not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law, unless the brief is filed pursuant to § 79a-6;
4. the e-brief contains 3,685 words;

5. the brief complies with all provisions of this rule; and
6. no deviations from this rule were requested/approved.

Timothy Lee
Fasano Ippolito & Lee
388 Orange Street
New Haven, CT 06511
tlee@fillaw.com

Attorney Jeffrey Beatty
Sullivan, Griffin & Beatty LLP
705 Boston Post Road
Guilford, CT 06437
jtbeatty@sgbllp.com

Richard Buturla
Bryan LeClerc
Berchem Moses PC (022801)
75 Broad Street
Milford, CT 06460
rbuturla@berchemmoses.com
bleclerc@berchemmoses.com

By: _____
Peter C. White (425295)